

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

September 23, 2013

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Brown, Ms. Broyles, Mr. Cook, Mr. Luna, Dr. Rinne, Mr. Shanor, Mr. Valdez and Ms. Williams. Absent: Mr. Allen. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Brown moved to approve, seconded by Mr. Luna. Motion carried. Voting "yes" -- all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on September 9, 2013. Motion (per Consent Agenda) carried.

Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Shanor. Upon inquiry regarding a voucher payable to Concrete Specialists, Rick Parish, Parks and Recreation Director, advised services by the contractor involved Greenway path repairs and provided information on the annual Greenway maintenance assessment and repair program. Motion carried. Voting "yes" -- all members of the governing body present.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from A-1 Agricultural and Rural Residential (County) to MUR Mixed-Use Residential Emphasis for Snyder Plaza, Cheyenne, Wyoming (located east of and adjacent to Snyder Avenue, north of W. Allison Road) (postponed from Sept. 9, 2013). Brandon Cammarata, Planning and Development Office, advised a petition opposing the zone change had been signed by neighbors in the vicinity and submitted on this date. He stated, pursuant to Uniform Development Code (UDC) requirements, the signatures must be verified and recommended postponement of the item to the October 14th City Council meeting to allow time for verification. Reporting for Public Services Committee, Mr. Shanor advised there was no recommendation on the item from Committee. Mr. Shanor moved to approve on third and final reading, seconded by Mr. Luna. Mr. Shanor moved to postpone to October 14, 2013, seconded by Mr. Luna. Ms. Williams noted that she had submitted the protest petition to the City Clerk, and expressed appreciation to the developer and agent for communication efforts with the neighborhood. Upon inquiry regarding the petition process, Dan White, City Attorney, recited wording contained in Wyo. Stat. Section 15-1-603 and stated it would need to be determined whether the petition met statutory requirements and, if so, then it

would require a minimum of eight affirmative votes by members of the governing body for the ordinance to pass on final reading rather than the usual six votes. Upon further inquiry, Mr. White stated petition signers must be owners of property within a designated area in order to be counted, and reviewed generally what the verification process would entail. Upon inquiry regarding whether notification to additional property owners that had recently occurred was invalid relative to the Planning Commission process, Mr. White advised he would like time to review what had been before the Planning Commission as well as state statute and UDC provisions in order to respond to the inquiry. Mr. White further clarified there did not seem to be a time limit in which petition signatures could be submitted but that the UDC states a protest petition should be filed in sufficient time for City staff to verify the petition. Motion to postpone carried. Voting "yes" -- all members of the governing body present. Under other business, Amber Ash, Ward I constituent, spoke in support of the ordinance and proposed development plans for the site.

ORDINANCE - Annexing to the City of Cheyenne, Wyoming, a parcel of land being situated in a portion of Section 20, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming, to be known as the Terre Pont annexation (located northeast of the intersection of Frontier Mall Drive and Prairie Avenue). Mr. Shanor moved to approve on third and final reading, seconded by Mr. Cook. Motion carried. Voting "yes" -- all members of the governing body present. (#3999)

ORDINANCE - Pursuant to Sections 1.1.6 and 2.4.1 of the Cheyenne Unified Development Code, amending the landscaping requirements under Unified Development Code Sections 6.3.4a, 6.3.4b, and 6.3.7e. Commenting on the proposed ordinance were: Lea Bain, John Volk, Dave Teubner, Nancy Loomis, Mark Ellison and Jan Nelson-Schroll. Topics discussed included the following: Comments in support as well as non-support of the ordinance; growing and maintaining liveable trees in Cheyenne's climate; current landscaping requirements and modification of same which would benefit various types of property owners/developers; financial and maintenance concerns involving landscape installation and grounds care, including City-owned parks, greenway paths and detention pond areas; support for community beautification efforts; community appearance as a factor in attracting and retaining businesses and employees; taking a progressive stance regarding landscaping relative to developments and re-developments; primary purpose of the proposed ordinance; landscaping assisting with run-off surface water and conservation/retention measures; providing for flexibility regarding requirements for small businesses or determining on a case-by-case basis under certain conditions; wise and efficient water use; water/pollutant discharges into storm sewers and storm water management; trees providing economic, environmental and energy efficient benefits; remaining competitive with other area communities' landscaping requirements; annual UDC review process; xeriscaping, and water re-use. In response to comments involving maintenance of City parks, greenways and detention ponds, Rick Parish, Parks and Recreation Director, provided information on public areas maintained by Parks and Recreation; tree survival rate, and water re-use and use of raw (untreated) water in certain areas. Mr. Shanor moved to approve on third and final reading, seconded by Mr. Luna. Discussion followed regarding landscaping costs associated with development and re-development of properties, and landscaping requirements and effect on large business vs. small business developments. Mr. Shanor moved to amend by

substitute ordinance dated September 13, 2013, seconded by Dr. Rinne. It was noted the proposed substitute provides clarification on the intent of an amendment that was approved at the September 9th City Council meeting. Motion to amend carried. Voting “yes” -- all members of the governing body present. Further discussion followed on the purpose of the ordinance, which is to reduce the amount of required liveable landscaping which would financially help small businesses; providing for flexibility; encouraging “in-fill” developments, and taking a wider look at development issues. Main motion as amended by substitute failed. Voting “yes” -- Mr. Luna, Mr. Shanor and Ms. Williams. Voting “no” -- Mr. Brown, Ms. Broyles, Mr. Cook, Dr. Rinne, Mr. Valdez and Mayor Kaysen voting “no”.

ORDINANCE - Amending the Cheyenne Unified Development Code (UDC), to allow, after conditional discretionary review, Service Uses, Animal Care - Hospital/Clinic in the MUB Mixed-Use Business Emphasis and the NB Neighborhood Business zone districts and to allow, as a use permitted by right, Service Uses, Animal Care - Kennel in the LI Light Industrial zone district. Luke Meyer, representative for Black Dog Animal Rescue; Troy Thompson, local veterinarian; Brittany Steinman, owner of local dog day care and pet hotel business, and Dr. Tiffany Healey, local veterinarian, offered comments in support of the ordinance. Topics presented included: Accessible veterinary care services; proposed zone changes being appropriate and providing for location options for animal care and kennel services, and minimum noise levels generated by animal care facilities. Mr. Shanor moved to approve on second reading, seconded by Mr. Cook. Comments followed in favor of the ordinance. Upon inquiry concerning conditional discretionary review, Brandon Cammarata, Planning and Development office, provided information on approvals required through the Board of Adjustment for certain types of requested uses and clarified the ordinance addresses two uses, one being veterinary clinics and the other pertaining to uses involving kennels, which would change kennel uses now allowed only in CB and Agricultural zones to include Light Industrial zones. Motion carried. Voting “yes” -- all members of the governing body present.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from NB Neighborhood Business to MR-2 Medium Density Residential - Developing for Lots 15 and 16, Block 17, Crest Ridge, 4th Filing, Cheyenne, Wyoming (located south of and adjacent to Storey Boulevard, between Canyon and Ridge Roads). Shelley Hood, adjacent property owner, spoke in opposition to the proposed zone change, expressing concerns with the type of development that is planned for the site (i.e. Multi-family residential 4-plexes) and effect on the neighborhood relative to noise and increase in vehicle/traffic volume. Mr. Shanor moved to approve on second reading, seconded by Ms. Broyles. It was noted several letters of concern and opposition had been submitted from residents in the vicinity, and that more in-depth review by City Council regarding proposed development plans could occur during the platting process. Upon inquiry, Brett Walker, Development Office, clarified the current zone classification of NB has been in place since the original subdivision was determined in 1996 and that the sole access into the property will be off Storey Blvd. He advised, based upon proposed development plans, a site plan review and conditional use approval will be needed, and a re-platting action may come before the governing body for approval. Upon further inquiry, Mr. Walker provided information on development design that would not require

approval by the governing body. Casey Palma, Steil Surveying, agent for Leaning Tree Homes, the applicant, advised they have been refining the site plan and are close to having it completed, and that a neighborhood meeting is scheduled for September 27th and notice of the meeting has been mailed to vicinity property owners. Ms. Hood advised she had not received a meeting notice and requested the agent reschedule the meeting to allow more notification time to the neighborhood. Mr. Palma stated the meeting was preliminary in nature and if the project moves forward additional notification of meetings relative to the site plan will be provided. Mr. Palma was requested to submit a copy of the upcoming meeting notice to members of the governing body. Upon inquiry, Mr. Palma provided information on the “radius” area used in conjunction with notification to property owners of the proposed zone change and utilization of property ownership and mapping data through the County Assessor’s GIS system. Brandon Cammarata, Planning and Development office, explained the 140 ft. radius is a minimum distance, as set forth in the UDC, and excludes streets and alleys. Question was raised on the number of apartment complexes that are located within each of the City’s Wards and concern was expressed that some complexes have resulted in higher police calls for services. In response to the question on the number of apartment complexes, Mayor Kaysen advised he would discuss the matter with Planning staff. Motion carried. Voting “yes” -- all members of the governing body present with the exception of Mr. Cook, Mr. Luna and Ms. Williams voting “no”.

ORDINANCE - Pursuant to Sections 1.1.6 & 2.4.1 of the Cheyenne Unified Development Code, Repealing and Re-enacting Unified Development Code Section 2.4.2, Annexations -- referred to Public Services Committee (sponsor -- Mr. Allen).

ORDINANCE - Repealing Chapter 13.20, Wastewater and Disposal, in its entirety and re-creating Chapter 13.20, Wastewater Treatment and Disposal, of Title 13, Public Services, of the City of Cheyenne City Code -- referred to Public Services Committee (sponsor -- Mr. Allen).

ORDINANCE - Amending Section 9.16.070(A), sale of tobacco to persons under the age of eighteen years prohibited, of Chapter 9.16, Offenses by or against minors, of Chapter 9, Public Peace and Welfare, of the Cheyenne City Code, pertaining to electronic cigarettes -- referred to Public Services Committee (sponsor -- Ms. Broyles).

ORDINANCE - Amending, creating, deleting and re-creating various chapters and Sections within Title 8, Health and Safety, of the Cheyenne City Code relating to general provisions pertaining to Fire Protection and Regulations, and adoption of the International Fire Code, 2012 Edition, and certain codes and practices promulgated by the National Fire Protection Association -- referred to Public Services Committee (sponsor -- Mr. Allen).

ORDINANCE - Amending various sections contained in Chapters 8.20, 8.24, 8.28 and 8.32 within Title 8, Health and Safety, of the Cheyenne City Code relating to General Provisions pertaining to Fire Protection and Regulations -- referred to Public Services Committee (sponsor -- Mr. Allen).

ORDINANCE - Amending Chapter 2.32, Fire Department, Section 2.32.020, Department Personnel, and Chapter 2.84, Miscellaneous Boards and Commissions, Section 2.84.050, International Fire Code Board of Appeals, of Title 2, Administration and Personnel, of the Cheyenne City Code pertaining to the Fire and Rescue Department -- referred to Public Services Committee (sponsor -- Mr. Allen).

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Teton Business Park, a replat of Lots 1 thru 4, inclusive, Block One, Classic Subdivision, Cheyenne, Wyoming (located at the northeast corner of the intersection of Westland and Old Happy Jack Roads) (postponed from 09/09/13). Motion (per Consent Agenda) carried. (#5527)

[CA] RESOLUTION - Certifying that the Governing Body of the City of Cheyenne has agreed on the Secure Fencing County project to be submitted to the State Loan and Investment Board for the Biennial FY13/14 Countywide Consensus Block Grant funding in the amount of \$40,000 to replace the ADA paving SLIB Consensus project. Motion (per Consent Agenda) carried. (#5528)

[CA] RESOLUTION - Certifying that the Governing Body of the City of Cheyenne has agreed on the Sheriff Canine Training Facility Waterline County project to be submitted to the State Loan and Investment Board for the Biennial FY13/14 Countywide Consensus Block Grant funding in the amount of \$17,200. Motion (per Consent Agenda) carried. (#5529)

[CA] RESOLUTION - Declaring as surplus a City-owned property located at 522 Van Lennen Avenue (All of Lots 1, 2, and 3, Block 660, South Cheyenne), together with improvements thereon, Cheyenne, Laramie County, Wyoming, and authorizing the City's Purchasing Director to proceed with the bidding process for sale of said parcel pursuant to Wyo. Stat. §15-1-112 -- referred to Finance Committee (sponsors -- Mr. Brown, Ms. Broyles).

[CA] RESOLUTION - Amending Resolution No. 5521 and authorizing submission of an application to the Wyoming Business Council, Business Ready Community Grant and Loan Program for funding through the Downtown Development Grant and Loan Program for an elevated walkway -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] Contract between the City of Cheyenne, Parks and Recreation Department, and Cheyenne Capitals Youth Hockey Association, for 2013 - 2014 youth hockey season at the City- owned Ice and Events Center. Motion (per Consent Agenda) carried. (#6063)

[CA] Agreement between the City of Cheyenne, Office of Youth Alternatives, and Laramie County School District No. 1 to provide services for students with disabilities for the 2013 - 2014 school year. Motion (per Consent Agenda) carried. (#6064)

[CA] Agreement between the City of Cheyenne, Office of Youth Alternatives, and Laramie County School District No. 1 to provide services for general education students for the 2013 - 2014 school year. Motion (per Consent Agenda) carried. (#6065)

[CA] Professional Services Agreement between the City of Cheyenne and BenchMark Engineers, P.C. for the Christensen Railroad Overpass and Corridor Project (1% Specific Purpose Sales & Use Tax). Motion (per Consent Agenda) carried (amount not to exceed \$1,401,050.00). (#6066)

[CA] Contract between the City of Cheyenne, Transit Division, and Wyoming Department of Health, Aging Division, to provide supportive services to persons 60 years or older (Title III-B Program Grant) -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne, Police Department, Victim Witness Program, and the State of Wyoming, Division of Victim Services, for services to victims of crime (Victim Services grant) -- referred to Finance Committee.

[CA] Contract Employment Agreement between the City of Cheyenne, Police Department, and Ashley McNelly, for crime victim assistance services (Victim Services grant) -- referred to Finance Committee.

[CA] Contract Employment Agreement between the City of Cheyenne, Police Department, and Brenda Johnson, for crime victim assistance services (Victim Services grant) -- referred to Finance Committee.

[CA] Contract Employment Agreement between the City of Cheyenne, Police Department, and Leslie Burch, for crime victim assistance services (Victim Services grant) -- referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne and the Friends of the Cheyenne Botanic Garden, a non-profit corporation, regarding future gifts which may be made by the Foundation to the City -- referred to Finance Committee.

[CA] Amendment No. 1 to City Contract No. 5874 and State Lease Agreement No. 8-09466 between the City of Cheyenne and State of Wyoming, Department of Administration and Information, Construction Management, for rental of parking spaces located at the Cox Parking Structure. Motion (per Consent Agenda) carried (\$37,800.00 annual total contract revenue to the City). (#5874)

[CA] Amendment No. 1 to Use Agreement (Contract No. 5963) between the City of Cheyenne and Level 3 Communications, LLC, for limited use of the public right-of-way for the installation of fiber optic communications systems -- referred to Finance Committee.

[CA] Consideration of Bid #M-5-14 for a contract between the City of Cheyenne, Parks and Recreation Department, and L.E.R., Inc., d/b/a Renner, Denver, Colorado, for the Martin Luther King Jr. Tennis Court project (State & Local grants; private donations). Motion (per Consent Agenda) carried (amount not to exceed \$77,477.00). (#6067)

Appointment of Tricia S. Crilly to the Cheyenne Housing Authority Board. Mr. Brown moved to approve, seconded by Mr. Luna. Motion carried. Voting "yes" -- all members of the governing body present with the exception of Mayor Kaysen who did not vote (Mayoral appointment).

[CA] Consideration to purchase one Montrose Precast Restroom Building for the City of Cheyenne, Grounds & Facilities Division, from CXT Concrete Precast Buildings, Inc., Spokane, Washington (Community Development Block grant) -- referred to Finance Committee.

Announcement was made of a public hearing to be held on Monday, October 14, 2013, at 6:00 p.m., in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, to receive

public comment on a proposed trade of real property owned by the City of Cheyenne, being a parcel of land located generally east of Missile Drive and south of the right-of-way of West 22nd Street, consisting of 6,098 square feet and having an appraised value of \$6,098.00, to Jina Morandin Costello, Jeanie M. Grogan, K. Tippy Costello, and Kyle W. Breeden.

Pursuant to comments by Amber Ash (refer to above agenda item on re-zoning ordinance for Snyder Plaza), Mayor Kaysen noted the ordinance would be reviewed again at the October 8th Public Services Committee meeting and the October 14th regular meeting of the governing body (meetings open to the public). Ms. Williams commented on pro-growth and referenced the protest petition she had filed relative to proposed retail business activity concerns involving the site.

There being no further business to come before the governing body, the meeting was officially adjourned at 8:15 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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